

Tentative Rulings for September 24, 2026, Probate Calendar

Judge James T. Chou
Department C

**APPEARANCES MAY BE MADE
IN PERSON
OR ON ZOOM.**

To Join a Zoom Meeting, please follow this link: www.marin.courts.ca.gov

1. Click on the “Virtual Courtrooms” icon and then on “Zoom Civil / Family / Probate Court Calendar Appearance Information”
2. Scroll down to Department C – Probate for the connection information.

Any interested party who wishes to appear for oral argument on the tentative ruling **must do the following no later than 4:00 PM** one Court day prior to the scheduled hearing date (MCR 6.2.D):

1. Notify all other parties entitled to notice of the underlying petition, including the attorneys for represented parties; and
2. Advise the clerk’s office by leaving a message at **(415) 444-7046, option 5.**

There is no need to inform the Court of your intent to appear if the tentative ruling requires an appearance.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at **(415) 444-7260**. Confidential cases include applications for Special Immigrant Juvenile Status.

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Judge James T. Chou
Department C
9:00 Calendar

PR0000358 IN THE MATTER OF RICHARD J. SHIPPY

Petition for Final Distribution, filed by Judith Anne Sedgwick on 7/22/26.

Ruling. Absent objections, this Petition will be **granted without hearing**.

PR0000634 IN THE MATTER OF THE RICHARD L. BIEGEL REVOCABLE TRUST, DATED OCTOBER 11, 1994

Amended Petition: (1) to Enforce Settlement; (2) for Breach of Fiduciary Duty; (2) for Order Compelling Disclosure of Information; and (4) for Instructions Regarding Income Distributions, filed by Ruth W. Biegel on 8/6/26.

Ruling. This matter is **continued to January 11, 2027, at 9:00 a.m.**, to trail all matters set for trial on that date.

PR0001010 IN THE MATTER OF ELANOR C. CRISWELL

Successor Executor's Report on Status of Administration, filed by Ronald C. Stone on 7/8/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**. Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by January 21, 2027**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report **shall be set on February 11, 2027, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on **February 11, 2027, at 9:00 a.m.**

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PR0001056 IN THE MATTER OF FABIO ANGIULI CORTARA

1. Petition for Final Distribution; Settlement of First and Final Account, Report of the Administrator of the Estate of Fabio Angiuli Cortara and Petition for Allowance of Compensation to Attorney and Administrator for Ordinary Services; Petition for Extraordinary Compensation, filed by Nicole Marie Angiuli on 10/7/25.
2. Petition Under Probate Code § 850 to Determine Ownership of Real and Personal Property by the Estate of Fabio Angiuli Cortara, Directing Transfer of Said Property to the Estate of Fabio Angiuli Cortara, and Under Probate Code §§ 1060, et seq. Requiring Nicole Angiuli, Administrator of the Estate of Fabio Angiuli Cortara, to Provide an Accounting of the Assets of the Estate, filed by Salvatore Cortara on 1/15/26.

Ruling. The parties are **ordered to appear**.

PR0001315 IN THE MATTER OF THE JOSEPH ABRAHAM AND ADELAIDA SERBANESCU FAMILY TRUST

1. Petition for Trust Accounting, filed by Tunde Etelka Munz-Abraham on 12/22/25.
2. Motion to Set Aside Judgment Under Code of Civil Procedure § 473(d), filed by Tunde Etelka Munz-Abraham on 11/6/25.
3. Motion for Order Quashing Deposition Subpoenas and Staying Depositions, filed by Ion Cristian Abraham on 1/15/26.

Ruling. This matter is **continued to November 19, 2026, at 9:00 a.m. in Courtroom C** for status of appeal.

PR0001323 IN THE MATTER OF BRITT MARIA CHAPPELL

Report of Status of Administration of Estate, filed by Marin County Public Administrator on 9/2/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**. Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by January 21, 2027**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report **shall be set on February 11, 2027, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on **February 11, 2027, at 9:00 a.m.**

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PR0001647 IN THE MATTER OF WILLIAM C. GREENWOOD FAMILY TRUST DATED APRIL 7, 2021

1. Verified Petition for: (1) Surcharge and Suspension of Trustee; (2) Order for Conveyance of Trust Property; and (3) Accounting by Attorney-in-Fact, filed by William C. Greenwood, Jr. and David B. Greenwood on 1/28/26.
2. Petition for Approval of Accounting and Acts of Trustee and Ratification of Trustee's Fees, filed by Gina M. Greenwood-Meinert on 5/15/26.

Ruling. Pursuant to the stipulation executed by the parties and order signed by the Court on September 22, 2026, these matters are **continued to January 28, 2027, at 9:00 a.m.** for status of mediation, and for further setting.

PR0001749 IN THE MATTER OF THE COLEMAN FAMILY TRUST

1. Verified Petition to Remove Trustees; Appoint Professional Fiduciary; Invalidate Trust Amendment; Compel Accounting; Impose Constructive Trust; and for Surcharge, filed by Michael E. Coleman on 4/1/26.
2. Status Conference Re Meet and Confer Efforts, Discovery, or to Set Trial Dates

Ruling. The parties are **ordered to appear.**

PR0001877 IN THE MATTER OF GEORGE T. OSTERKAMP

Petition for Probate of Will and for Letters Testamentary, filed by Florence Higa on 7/2/26.

Ruling. Absent objections, this Petition will be **granted without hearing.** Petitioner is **ordered to comply** with the following future dates:

1. Final Inventory and Appraisal.
 - a. A status hearing for the filing of the Final Inventory and Appraisal shall be **set on January 28, 2027, at 10:00 a.m.** (Prob. Code, § 8800.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(B), Filing, Hearing, and Continuance Procedures.)
2. Status on Closing Estate.
 - a. Either (1) a Petition for Final Distribution; or (2) a Report on Status of Administration **shall be filed by September 30, 2027**, as required by Probate Code sections 12200 and 12201.
 - b. A status hearing re filing the Petition or Report shall be **set on October 21, 2027, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on October 14, 2027, at 9:00 a.m.

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PR0001891 IN THE MATTER OF MICHAEL MONTI

Petition for Settlement of Account Under Probate Code § 17200(b)(5), Order Accepting Resignation of Trustee Under Probate Code § 17200(b)(11), and Order Appointing Successor Trustee Under Probate Code § 15660, filed by Michael Monti on 7/10/26.

Ruling. Any Response to the Response filed by Minnie Rose McBride on 9/15/26 or the Objection filed by Sydney Morton on 9/17/26 **shall be filed by no later than October 1, 2026**, or such response is deemed waived. The parties are **ordered to meet and confer** in person, by telephone, or by video teleconference prior to October 1, 2026. The matter is **now set for October 8, 2026, at 9:00 a.m. in Department C** for further setting.

PR0001897 IN THE MATTER OF WILLIAM P. AND UTTA P. TELLINI REVOCABLE TRUST, AS AMENDED AND RESTATED ON OCTOBER 14, 2013

Petition for Order Transferring Accounts at Schwab to the William P. and Utta P. Tellini Revocable Trust, filed by Raymond P. Tellini on 7/15/26.

Ruling. This matter is **continued to October 15, 2026, at 9:00 a.m.** Petitioner is **ordered to file** copies of account statements confirming that the accounts at issue were owned by the settlors as of the date of execution of the First Amendment to and Complete Restatement of the William P. and Utta P. Tellini Revocable Trust (10/14/13).

PR0001898 IN THE MATTER OF TAYLOR FAMILY REVOCABLE TRUST

Petition for Order Confirming Trust Assets (Heggstad Petition) with Consents, filed by Julie Hite Taylor on 7/15/26.

Ruling. Absent objections, this Petition will be **granted without hearing**.

PR0001899 IN THE MATTER OF THE QUALIFIED TERMINABLE INTEREST PROPERTY (QTIP) TRUST ESTABLISHED UNDER THE WALTER AND LUELLA BENSON TRUST DATED NOVEMBER 23, 2010

Petition for: (1) Appointment of Trustee; (2) Confirmation that Real Property Was an Asset of QTIP Trust and Recovery of Damages for Loss of Real Property; (3) Confirmation of Validity of QTIP Trust; and (4) Recovery of Loan Proceeds, Loan Payment, and Damages for Waste from Luella's Separate Property Trust, filed by Paul D. Benson on 7/16/26.

Ruling. The parties are **ordered to appear**.

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PR0001914 IN THE MATTER OF RONNY R. RHOADES, JR. LIVING TRUST (2002) DATED MAY 31, 2022

Petition for an Order Transferring Property Held By Ronny R. Rhoades, Jr. Individually to the Successor Trustee of the Ronny R. Rhoades, Jr. Living Trust (2022) Dated May 31, 2022, filed by Matthew Rhoades on 7/23/26.

Ruling. Absent objections, this Petition will be **granted without hearing.**

PR0001941 IN THE MATTER OF ELIZABETH KENNEDY

Petition for Probate of Will and for Letters of Administration with Will Annexed, filed by Christina Hause on 8/18/26.

Ruling. Absent objections, this Petition will be **granted without hearing.** Petitioner is **ordered to comply** with the following future dates:

1. Final Inventory and Appraisal.
 - a. A status hearing for the filing of the Final Inventory and Appraisal shall be **set on January 28, 2027, at 10:00 a.m.** (Prob. Code, § 8800.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(B), Filing, Hearing, and Continuance Procedures.)
2. Status on Closing Estate.
 - a. Either (1) a Petition for Final Distribution; or (2) a Report on Status of Administration **shall be filed by September 30, 2027**, as required by Probate Code sections 12200 and 12201.
 - b. A status hearing re filing the Petition or Report shall be **set on October 21, 2027, at 10:00 a.m.**
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PR0001948 IN THE MATTER OF FLORENCE JUDY BARNES

Petition for Letters of Administration, filed by Dru Parker on 8/24/26.

Ruling. Absent objections, this Petition will be **granted without hearing**. Petitioner is **ordered to comply** with the following future dates:

1. Final Inventory and Appraisal.
 - a. A status hearing for the filing of the Final Inventory and Appraisal shall be **set on January 28, 2027, at 10:00 a.m.** (Prob. Code, § 8800.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(B), Filing, Hearing, and Continuance Procedures.)
2. Status on Closing Estate.
 - a. Either (1) a Petition for Final Distribution; or (2) a Report on Status of Administration **shall be filed by September 30, 2027**, as required by Probate Code sections 12200 and 12201.
 - b. A status hearing re filing the Petition or Report shall be **set on October 21, 2027, at 10:00 a.m.**
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 - ii. If the Petition or Report is timely filed, the hearing will be set on October 14, 2027, at 9:00 a.m.

PR0001952 IN THE MATTER OF DOROTHY INEZ BYSOM

Petition Probate of Will and for Letters Testamentary, filed by Douglas Bowers on 8/25/26.

Ruling. Absent objections, this Petition will be **granted without hearing**. Petitioner is **ordered to comply** with the following future dates:

1. Final Inventory and Appraisal.
 - a. A status hearing for the filing of the Final Inventory and Appraisal shall be **set on January 28, 2027, at 10:00 a.m.** (Prob. Code, § 8800.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(B), Filing, Hearing, and Continuance Procedures.)
2. Status on Closing Estate.
 - a. Either (1) a Petition for Final Distribution; or (2) a Report on Status of Administration **shall be filed by September 30, 2027**, as required by Probate Code sections 12200 and 12201.
 - b. A status hearing re filing the Petition or Report shall be **set on October 21, 2027, at 10:00 a.m.**
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PRO1801087 IN THE MATTER OF DONN R. SCHOENMANN

1. Motion for Leave to File Amended Answer Asserting Additional Affirmative Defenses, filed by E. Lynn Schoenmann on 6/16/26.
2. Motion for Judgment on the (Amended) Pleadings Dismissing the Amended Petition with Prejudice, filed by Respondent E. Lynn Schoenmann on 7/9/26.

Ruling. As a preliminary matter, the Court takes judicial notice of the court records requested by Petitioners. (Evid. Code, § 452, subd. (c) and 453.)

The Court concludes that it has authority to rule on Respondent's Motion for Leave to File Amended Answer Asserting Additional Affirmative Defenses and grants this motion.

Having granted Respondent's Motion for Leave to File Amended Answer Asserting Additional Affirmative Defenses and having considered Respondent's Motion for Judgment on the Pleadings, in light of the Amended Answer, the Court denies the Motion for Judgment on the Pleadings for the following reasons. The Court may "take judicial notice of the *existence* of judicial opinions and court documents, along with the truth of the results reached" in this order. (*People v. Harbolt* (1997) 61 Cal.App.4th 123, 126.) This Court took judicial notice of the Bankruptcy Court's Order Abstaining from Deciding Consolidated Adversary Proceedings, Dismissing Them and Granting Relief from Stay. (Req. Jud. Notice, Exh. O.) This Order granted "full relief from the automatic stay...so that the California Superior Court for the County of Marin...may proceed to adjudicate all remaining issues in this matter without regard to this bankruptcy case." The Court takes judicial notice that the Bankruptcy Court abstained from deciding certain issues that are to be adjudicated by the Marin County Superior Court. The identification of these remaining issues is a factual determination.

PRO2003455 IN RE THE PATRICIA CORNELL TRUST DATED NOVEMBER 16, 1993, TRUST OF

Verified Petition of Trustee Ann Cornell to Declare Patricia Cornell a Vexatious Litigant and for Prefiling Order, filed by Ann Cornell on 4/22/26.

Ruling. The Verified Petition of Trustee Ann Cornell to Declare Patricia Cornell a Vexatious Litigant and for Prefiling Order, filed by Ann Cornell on 4/22/26 is **denied without prejudice**.

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Judge James T. Chou

Department C

10:00 Calendar

PR0001088 IN THE MATTER OF EDWARD LOUIS DeROSIS

1. Status Conference - Filing of Final Inventory and Appraisal
2. Status Conference – Filing Petition for Final Distribution or Report of Status of Administration

Ruling. Personal representative Kim Schwarcz and attorney Kevin M. Baldwin are **ordered to appear**.

PR0001142 IN THE MATTER OF FRANKLIN D. RAINWATER

Status Conference – Filing Petition for Final Distribution or Report of Status of Administration

Ruling. Personal representative James Rainwater and attorney Ralph Kokka are **ordered to appear**.

PR0001328 IN THE MATTER OF JEANNE C. MAHON

1. Status Conference – Filing Petition for Final Distribution or Report of Status of Administration
2. Status Conference – Filing Final Inventory and Appraisal
3. Order to Show Cause – Why the Personal Representative Shouldn't Be Removed and Why Attorney Mr. Fenton and Mr. Parenti Shouldn't Be Sanctioned in the amount of \$149 for each of the following: (1) Failure to appear on 8/20/26 and (2) Failure to File Final Inventory and Appraisal.

Ruling. Personal representative Christian Parenti and attorney Joseph F. Fenton are **ordered to appear**.

PR0001333 IN THE MATTER OF EVA CAPRILE

Status Conference – Filing Petition for Final Distribution or Report of Status of Administration

Ruling. Personal representative Alice Fishler and attorney Steven Klamm are **ordered to appear**.

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PR0001582 IN THE MATTER OF DIANA MORELL

1. Status Conference - Filing of Final Inventory and Appraisal
2. Order to Show Cause – Why the Personal Representatives Should Not Be Removed and Why Counsel Should Not Receive Additional Sanctions

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001720 IN THE MATTER OF JOHNSON W. REYNOLDS

Status Conference - Filing of Final Inventory and Appraisal

Ruling. Personal representative Danielle L. Sears and attorney Patricia A. Scott are **ordered to appear**.

PR0001731 IN THE MATTER OF CRAIG ALAN RAMINI

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001761 IN THE MATTER OF CHARLES ANDREW KEPPEL

Status Conference - Filing of Final Inventory and Appraisal

Ruling. Personal representative Joshua Bernard Keppel and attorney Anne Asis are **ordered to appear**.

Judge James T. Chou
Department C
1:30 Calendar

PR0001583 IN THE MATTER OF JUDITH YOUNGMAN

1. Status Conference – Filing of Final Inventory and Appraisal
2. Status Conference – Filing of Confidential Conservatorship Care Plan

Ruling. Conservator Anne F. Smith and attorney Nancy C. Field are **ordered to appear**. The Court notes that a partial Inventory and Appraisal has been filed.

PR0001709 IN THE MATTER OF PAUL LECLERC

Status Conference – Filing of Confidential Conservatorship Care Plan

Ruling. This matter is ordered **off calendar**; the required documents have been filed.

PR0001873 IN THE MATTER OF ALICE MARY BREUER

Petition for Appointment of Probate Conservator of the Person and Estate, filed by Carl Breuer on 6/24/26.

Ruling. The parties are **ordered to appear**.

PR0001874 IN THE MATTER OF STIG ELLING WANBERG

Petition for Appointment of Probate Conservator of the Person, filed by Erik and Victoria Wanberg on 6/25/26.

Ruling. This matter is **continued to October 22, 2026, at 1:30 p.m.** Petitioner is **ordered to file** a fully executed Capacity Declaration that includes an assessment as to the proposed conservatee's ability to give or withhold informed consent to medical treatment.

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PRO1101597 RACHEL DENNISON, CONSERVATORSHIP OF THE PERSON AND ESTATE

7TH and Final Account

Ruling. This matter is **continued to October 22, 2026, at 1:30 p.m.** Petitioner is **ordered to file** Proof of Service confirming that all interested parties received at least fifteen days' notice of the Account on the mandatory Judicial Council Form "Notice of Hearing – Guardianship or Conservatorship." (Judicial Council Forms, form GC-020.)

PRO1204637 KAREN MARIE TRENDLE, LIMITED CONSERVATORSHIP OF THE PERSON

Status Conference – Confirmation of Transfer to San Mateo County

Ruling. The parties are **ordered to appear.**

PRO1600357 CANDACE LEIGH WICKHAM, LIMITED CONSERVATORSHIP OF THE PERSON

Petition for Order Allowing Resignation of Co-Conservators, filed by Stanley D. Wickham and Lisa R. Ireland on 8/20/26.

Ruling. The parties are **ordered to appear.**

PRO2001689 IN THE MATTER OF THEODORE KRAUS

Petition – Medical Treatment

Ruling. The parties are **ordered to appear.**

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